

Before the
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-23

MARINE TRANSPORT LOGISTICS, INC.
v.
CMA CGM, S.A.

Respondent's Replies to Complainant's Proposed Findings of Fact

Respondent CMA CGM, S.A. ("CMA" or "Respondent"), through its counsel, hereby submits the following Replies to Marine Transportation Logistics, Inc. ("MTL" or "Complainant") Proposed Findings of Fact ("CPFFs") and states as follows.

Booking #NAM4887632, Container #TGBU5073710

CPFF1. On March 3, 2022, MTL advised CMA to reroute the subject container to the Port of Bremerhaven. (Ex. 1_CMA Bates #585).

Denied. Answering further, CMA admits that MTL requested a change of destination. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA's tariff, the applicable service contract, and the applicable bill of lading. Respondent's Proposed Findings of Fact ("RPFF")33-RPFF45.

CPFF2. On March 15, 2022, an internal CMA email discusses MTL's change in destination request to Bremerhaven: [REDACTED]

[REDACTED] (Ex. 2_CMA Bates #95).

Admitted.

CPFF3. Instead, the subject containers were diverted to the Port of Constanta against MTL's instructions to divert such to Bremerhaven, as CMA wrote to MTL on April 1, 2022, "The cargo has already been discharged to Constanta do you just want to pick cargo up there?" (Ex. 3_CMA Bates #579).

Denied. Answering further, MTL did not "instruct" CMA to divert the cargo to Bremerhaven. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA's tariff, the applicable service contract, and the applicable bill of lading. RPFF35. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied.

CPFF4. MTL replied on the same day: "Hello, no sorry, customer is insisting on Bremerhaven, thanks." (Ex. 4_CMA Bates #577).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF5. This customer of MTL who insisted on the subject containers to be sent to Bremerhaven as originally instructed was Andrey Kodrianka. As Maria Bondarev from CIS Development (also MTL's client) testified: "Agents of Odesa asked all the containers to be delivered to Bremerhaven, the agents of Kodryanka." (Ex. 5_p.17). This agent of Kodryanka was "Favoritplus." (*Id.* at p.24).

Denied. Ms. Bondarev testified that she did not remember whether or not the consignee was FavoritPlus for any of the subject shipments.

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CPFF6. In the meantime, CMA has been contacting MTL's client to pay for demurrage at the Port of Constanta – even though MTL did not ask for any of the subject containers to be delivered there – before allowing the subject container to continue its journey to Bremerhaven as is evident by the following communications from CMA in April and July of 2022.

Denied. Answering further, CMA properly diverted the containers to Constanta under the terms and conditions of the applicable tariff, service contract, and bill(s) of lading. RPFF21. Because this PFF does not contain the required citation to the record, CMA cannot determine which communications this PFF refers to and for that reason, it is denied.

CPFF7. On April 14, 2022, CMA wrote to MTL's client's agent (Favoritplus) and said: "Dear Customer, POD for NAM4887632 is updated to Constanta. Pls advise when you are going to pick up the cargo. Demurrage and storage are increasing on a daily basis." (Ex. 6).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that it ever collected demurrage or storage charges with respect to this container. RPFF130.

CPFF8. This email referenced in paragraph 7 above was omitted from CMA's production of documents, which is why it does not contain a CMA bates number.

Denied. CMA admits that this email was not included in CMA's production but notes that it was already in MTL's possession and denies that it was "omitted."

CPFF9. As Julia Privalova from MTL wrote to CMA on April 21, 2022: "Please help. Container is idling in Constanta port, but we didn't ask to deliver I there, we asked to deliver to BREMERHAVEN!!! Why nothing is being done?? Why is my customer being chased and asked

to pay for storage/demurrage???? I need this to be resolved today, please.” (Ex. 7_CMA Bates #557-558).

The referenced email, being a written document, is the best evidence of its contents.
To the extent the description in this PFF differs from the document itself, the PFF is denied.
CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF10. On May 6, 2022, an internal CMA email concerning this subject container and other containers of other customers reads as follows: [REDACTED]

[REDACTED]

[REDACTED] (Ex. 8_CMA Bates #70989-70990).

The referenced email, being a written document, is the best evidence of its contents.
To the extent the description in this PFF differs from the document itself, the PFF is denied.
CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF11. On July 5, 2022, CMA (Oksana Muraya) continued to contact MTL’s customer’s agent (Favoritplus) for demurrage and storage that accumulated in the Port of Constanta: “We are planning to load container on Stadt Dresden on Jul.19 to Bremerhaven. Please advise if Cnee will be Favorit Plus or to be amended. Thanks to revert with payer and payment location of charges occurred in Constanta, i.e. storage and yard moves since without duly manifested charges container won’t be loaded.” (Ex. 9).

The referenced email, being a written document, is the best evidence of its contents.
To the extent the description in this PFF differs from the document itself, the PFF is denied.
CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF12. This email referenced in paragraph 11 above was also not included in CMA's document production.

Admitted. Answering further, the email was in MTL's possession but not included in MTL's production.

CPFF13. CMA never provided copies of any of the referenced invoices for Constanta. In an email dated February 11, 2024, it says: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Ex. 10_page 1).

Denied. [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CPFF14. The attached invoice as to this subject container is dated February 5, 2024. *Id.* at 21. Notably, when looking at this invoice issued almost two years after the subject containers was held at Constanta, it says in the description: [REDACTED] *Id.* This invoice does not list the location of such ports or the periods of storage.

The referenced invoice, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied.

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

CPFF15. So it appears that CMA never sent invoices for any demurrage, only emails trying to collect demurrage, as CMA says: [REDACTED]

[REDACTED] *Id.* at 4.

Denied. See RPFF123 - RPFF128.

Demurrage continues to accumulate as CMA delays changing the consignee:

CPFF16. On July 8, 2022, MTL wrote to CMA as to the subject containers: “Multiple requests and reminders sent to CMA to change destination and consignee, but CMA first completely ignore the request so I had to ask Kiala for help. CMA’s customer service either ignores requests completely or replies with huge delays. These charges were all caused by CMA’s delays.” (Ex.11_CMA Bates No. 495-496).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA specifically denies that any charges were incurred by MTL. See RPFF121 - RPFF130. CMA specifically denies that CMA ignores requests completely.

CPFF17. On July 11, 2022, Ms. Muraya from CMA wrote to Favoritplus: “We’ll fail to catch Stadt Dresden ETS Jul. 19 without payment confirmation and confirmed CNEE Please revert with payer and payment location and let us know if Favorit Plus will stay CNEE in Bremerhaven.” (Ex. 12).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF18. The email referenced in paragraph 17 above too was not produced in discovery by CMA.

Admitted. Answering further, the email was in MTL’s possession but not included in MTL’s production.

CPFF19. Here, we see that CMA continued to delay placing the subject containers to their ultimate destination of Bremerhaven as initially requested until they collect demurrage and storage charges for the Port of Constanta, without providing any invoices for such.

Denied. Answering further, this Proposed Finding of Fact is unsupported by any citation to the record, contrary to the requirements of the September 12, 2022 Initial Order of ALJ Wirth. See Initial Order, p. 3.

CPFF20. On July 14, 2022, Ms. Muraya wrote again to Favorit Plus stating that now the plan was to load the container on July 30, 2022 if the charges occurred in the Port of Constanta would be paid: “Please note that we are going to load below unit on GSL Susan 0BMHUS1MA 30.07.22. Please revert with payer and payment location of charges occurred in Constanta such as storage and yard move...” (Ex. 13_CMA Bates #961).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA denies that it refused to load the subject container to Bremerhaven without payment of the referenced charges. RPFF49.

CPFF21. On July 18, 2022, MTL sent another reminder and complaint to CMA that the subject containers have not been released. (Ex. 15_CMA Bates #961).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF22. On the same day, July 18, 2022, CMA'S Oksana Muraya sent an internal email: "Dear US Team, Please check with Shipper a payer and payment location of charges occurred in Constanta such as storage and yard moves." She then adds: "Please note that CNEE address hasn't been updated for NAM4887632, container has been cut from the loading list and rolled on Amarli Aug. 07. We'll revert with updated charges of storage asap." (Ex. 16_CMA Bates #1117-1119).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA denies that any storage charges were in fact required to be paid by CMA. RPFF121 - RPFF130. CMA admits that Ms. Muraya was trying to ascertain from the shipper (MTL) who would be paying any charges relating to the shipment but denies that any storage charges were ever required to be paid by CMA. RPFF49.

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CMFF23. A company by the name of TMM International wrote to CMA as follows on June 30, 2022 concerning Booking CMAU207108/Container TCNU2194554: [REDACTED]

[REDACTED]

[REDACTED] (Ex.. 18_CMA Bates #66718).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA further states that the invasion of Ukraine by Russia and closure of the Port of Odesa was an unforeseeable event beyond the control of CMA. RPFF23.

CPFF24. Concerning the same containers referenced in paragraph 23 above, the original consignee wrote: [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] (Ex. 19, CMA Bates #66849-66850).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF25. However, CMA said on July 7, 2022 concerning paragraph 24 above: [REDACTED]
[REDACTED] (See Ex. 18 at p. 1).

CMA denies CX18 page 1 (AEO-Confidential CMA_66708) of the Complainant's Confidential Appendix contains the quoted statement of CPFF25.

CPFF26. This is supported by the fact that the same CMA unit (Anna Sorochoan from CMA's Intermodal Department), on July 8, 2022, is sending out the same email to CMA's other office as there was no response. [REDACTED]
[REDACTED] (Ex. 20_CMA Bates #94668).

Denied. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

Booking #NAM4996094, Container #UETU5251612

CPFF27. On March 3, 2022, MTL advised CMA to reroute the subject container to the Port of Bremerhaven. (Ex. 21).

Denied. Answering further, MTL did not "advise" CMA to divert the cargo to Bremerhaven. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA's tariff, the applicable service contract, and the applicable bill of lading. RPFF21.

CPFF28. On March 9, 2022, MTL sent a follow up. (Ex. 22)

CMA admits that MTL sent Complainant's Exhibit 22 which was dated March 9, 2022. The referenced email, being a written document, is the best evidence of its contents. To

the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF29. On March 11, 2022, MTL sent another follow up (Ex. 23)

CMA admits that MTL sent Complainant's Exhibit 23 which was dated March 11, 2022. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF30. On March 15, 2022, CMA finally responded and added their "diversions" team. (Ex. 24).

CMA admits that CMA sent Complainant's Exhibit 24 dated March 15, 2022. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF31. On March 25, 2022, MTL sent another request to CMA as to the change of destination and consignee. (Ex. 25).

CMA admits that MTL sent Complainant's Exhibit 25 dated March 25, 2022. CMA denies that this email represented "another" in the sense of a repeated request to change the consignee; this was the first such request. RPFF46. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF32. On June 14, 2022, MTL notified CMA that the consignee had not been changed to date. (Ex. 26).

CMA admits that MTL sent Complainant's Exhibit 26 dated June 14, 2022. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF33. Just as CMA did not produce certain communications concerning demurrage charged concerning the port of Constanta, they did not provide any documents for this container as well for the demurrage/storage charges concerning the Port of Constanta or at any other transshipment port that this container may have gone through.

Denied. CMA produced 100+ pages of documents related to the referenced container, which constitutes all non-privileged communications responsive to MTL Requests for Documents that CMA located after a diligent search. See RPFF53 - RPFF60.

CPFF34. MTL does not have such documents referenced in paragraph 33 above as Mr. Kodryanka (the consignee on all of the subject shipments (Ex. 27B) and MTL's client (See MTL's affidavit at Ex. 27C) has not had contact with MTL since this happened (Ex. 27), and there is no evidence that CMA has ever informed MTL or its customers why the containers were not immediately loaded in the Port of Constanta and idled there for months.

CMA denies this Proposed Finding of Fact and notes that there is no factual support for the statement of counsel that MTL does not have documents related to the entity that it claims to be its own customer. CMA specifically denies that CX27 provides credible evidence that Mr. Kodryanka has "not had contact with MTL since this happened." Specifically, CMA denies that CMA did not "inform MTL or its customers" of the reason for the delays. On the very day that Russia invaded Ukraine and the Port of Odesa was closed, CMA published a notice to all customers about the event and the need to divert all vessels headed to Ukraine.

RPFF28. CMA also sent many additional alerts and direct emails about the ongoing disruption and CMA's efforts to address it to all of its customers. RPFF29.

CPFF35. As a result of the foregoing, MTL lost the "Kodryanka" client with a list of transactions attached at Ex. 27A. (See also 27C).

CMA denies this Proposed Finding of Fact, CMA specifically denies that Kodryanka, the consignee for these shipments, was ever MTL's "client" or that CX27A or CX27C contain any information supporting counsel's argument that "Kodryanka" was ever MTL's "client." CMA further denies that MTL "lost" Kodryanka and that any such loss was a result of actions by CMA, as MTL speculates.

CPFF36. Similarly, CIS Development testified that the Kodryanka stopped working with them as well for approximately 6 months because of this:

Ex. 5, p. 14-15

Q. With respect to the five containers that CIS hired MTL to deliver from New York to Odesa in early 2022, the containers were either Public Organization Kodryanka or Favorite Plus were the consignees. What happened to those five containers?

A. They stayed for a long time in Constanta. We actually had them to be delivered to Bremerhavenn, but they were delivered to Constanta and then, eventually, they were probably received by the recipient. But for a very long time, they didn't work with us. For several months, they didn't work with us because of that, Kodryanka.

CMA admits that CIS Development's Maria Bondarev testified that Kodryanka stopped working with CIS for "several months" (as stated in the quotation) before resuming business with the company. RPFF89.

CPFF37. CMA did, however, provide demurrage charged for the time the subject containers were in Bremerhaven. CMA admitted that these charges should not have been issued as this was the fault of CMA. Specifically, CMA finally wrote on August 9, 2022: "Demurrage and Storage

need to be cleared for the above BLs due to CCA error in COD and Doc completion. . . “ (Ex. 28_CMA Bates #1145).

CMA admits that it waived all demurrage and storage charges for the BLs in question in August 2022, namely: Booking No. NAM4996094, Container No. UETU5251612; Booking No. NAM4887650, Container No. SEGU6471959; Booking No. NAM4887651, Container No. UESU5180789; Booking No. NAM5020932, Container No. TRLU7542206; and Booking No. NAM4887632, Container No. TGBU5073710. RPFF121 - RPFF130.

CPFF38. Irrespective of this email, MTL still had not received the invoices as the following email on August 10, 2022 demonstrates: “Still no invoices. I do not understand how you can hold the containers due to the unpaid balance for the demurrage and storage charges, but cannot give us the invoice where we will see the charges. . . “ (Ex. 29_CMA Bates #967).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA specifically denies that MTL has not received any invoices.

Booking #NAM4887650, Container #SEGU6471959

CPFF39. On March 3, 2022, MTL advised CMA to reroute the subject container to the Port of Bremerhaven. (Ex. 30).

Denied. Answering further, MTL did not “advise” CMA to divert the cargo to Bremerhaven. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA’s tariff, the applicable service contract, and the applicable bill of lading. RPFF21.

CPFF40. On March 11, 2022, having received no response, MTL sent a follow up message. (Ex. 31)

CMA admits that MTL sent Complainant's Exhibit 31 dated March 11, 2022. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF41. On March 15, 2022, CMA finally responded: "adding in our diversions team." (Ex. 32).

CMA admits that CMA sent Complainant's Exhibit 32 on March 15, 2022. The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF42. On April 5, 2022, CMA finally advised that the destination has been changed to Bremerhaven, but the change of destination has been completed on April 12, 2022. (Ex. 33 and 34).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA admits that the COD process was completed on or before April 28, 2022. RPFF48.

CPFF43. On June 3, 2022, MTL notified CMA that they forgot to change the consignee. (Ex. 35).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied.

CMA denies that the mere existence of the email is evidence of the truth of its content. CMA admits that June 3, 2022 was the first time MTL requested to change the consignee.

Booking #NAM4887651, Container #UESU5180789

CPFF44. On March 3, 2022, MTL advised CMA to reroute the subject container to the Port of Bremerhaven. (Ex. 36).

Denied. Answering further, MTL did not “advise” CMA to divert the cargo to Bremerhaven. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA’s tariff, the applicable service contract, and the applicable bill of lading. RPFF21.

CPFF45. As of June 20, 2022, this container was still not released. (Ex. 37).

CMA admits that as of June 20, 2022, the container had not yet been released from the terminal in Bremerhaven. It was discharged in Bremerhaven on June 8, 2022. RPFF52.

Booking #NAM5020932, Container #TRLU7542206

CPFF46. On March 3, 2022, MTL advised CMA to reroute the subject container to the Port of Bremerhaven. (Ex. 38).

Denied. Answering further, MTL did not “advise” CMA to divert the cargo to Bremerhaven. Changes of Destination (COD) are discretionary and require a timely request compliant with the conditions for COD set out in CMA’s tariff, the applicable service contract, and the applicable bill of lading. RPFF21.

CPFF47. As of June 7, 2022, CMA still had not changed the consignee irrespective of MTL advising to change such. (Ex. 39).

Denied. Answering further, MTL did not “advise” CMA to change the consignee. Changes of Consignee (COC) are discretionary and require a timely request compliant with

the conditions for COD set out in CMA's tariff, the applicable service contract, and the applicable bill of lading. RPFF21. CMA admits that MTL requested a COC for the first time on June 7, 2022. *See* CX39.

Booking #NAM3933751, Container #TCNU3475181

CPFF48. On June 19, 2020, CMA notified MTL: "Boats are restricted or sensitive as per EU regulation on Libya. . . " (Ex. 40 at p. 1).

Admitted.

CPFF49. MTL responded: "There are no boats in the container. We loaded 3 cars and a jet ski with the trailer (see attached picture)." *Id.* The title as to the jet ski is attached as Ex. 40A and Bill of Sale as Ex. 40B.

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content. CMA specifically denies that there were no boats in the subject container. RPFF66. CMA admits this Proposed Finding of Fact that Complainant's Exhibit 40A, the title to the jet ski, is entitled "Application for Transfer of Watercraft Certificate of Title" and includes a section for, "Boat Description." Similarly, Complainant's Exhibit 40B, the jet ski's Bill of Sale, describes the "Vehicle Body" as "Boat TRL."

CPFF50. CMA responds: "Per Malta customs Jet skis fall under the same category for this." Ex. 40 at p. 1. CMA never produced any documents from any Malta customs.

Admitted. CMA further notes that its diligent search did not locate any documents from Malta customs. RPFF77.

CPFF51. This was a false statement by CMA as other carriers, in the same time frame, were not only shipping jet skis to Libya, but also boats. (Ex. 41).

CMA specifically denies that it made a false statement. CMA further denies that Exhibit 41 provides support for this Proposed Finding of Fact. RPFF69; RPFF70.

CPFF52. On August 7, 2020, CMA wrote to MTL: “Hi Julia, understand it was in-gated a week prior to the notification, but that still does not change the fact that EU regulations prohibited this container from moving to Libya.” (Ex. 42, CMA Bates #945).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF53. On September 8, 2020, MTL wrote to CMA: “Hello Andre, container is arriving this week and issue has not been resolved yet. You promised to send Alla email on Friday but she didn’t receive anything from you. MTL will not be responsible for any storage/demurrage charges at destination cause CMA had enough time to fix this issue, thanks.”

CMA notes that MTL fails to cite any support for this Proposed Finding of Fact, as required by the September 12, 2022 Initial Order. CMA denies that the mere existence of the email is evidence of the truth of its content.

CPFF54. Of course, the issue has not been resolved because CMA delayed such for the purpose of issuing charges for detention/demurrage, which they did a few weeks later. (Revised Invoice attached as Ex. 44)

Denied. CMA further denies that Exhibit 44 contains support for the factual assertions in Complainant’s PFF No. 54.

CPFF55. CMA did not provide any documents in connection with this dispute. We know that such documents exist as, for example, CMA's Andre Ristic wrote on July 29, 2020: "This is currently under review of executive management." (Ex. 45). Similarly, CMA's Container Incident Management Team responded: "I pushed to try and get all costs waived and had the matter reviewed by upper management." (Ex. 46). CMA provided zero documents concerning these communications by upper management.

Denied. RPFF80 - RPFF85.

CPFF56. CMA did not inform MTL that demurrage would continue to accumulate while the dispute was pending.

Denied. RPFF80 - RFPP85.

CPFF57. As a result of the foregoing, MTL suffered lost business from its client (ALMOTWASIT FOR SELLING AND PURCHASING OF AUTOMOBILES) who stopped working with MTL as a result of this. (Ex. 27C, Ex. 47 and Ex. 48).

CMA denies that three invoices (CX27C, CX47, and CX48) totaling less than \$5,000 (or any other part of the record) provide any evidence that Almotwasit would have done any additional business with MTL. RPFF98.

Booking #[NAM]4588370 (Allegations #34-36)

CPFF58. Irrespective of requesting such, CMA did not produce any documents concerning these allegations. Ex. 51. Proves that CMA mistakenly rolled another container and continued to pursue demurrage charges.

Denied. RPFF65. CMA further denies that CX51 provides any evidence, much less demonstrates, that CMA continued to pursue demurrage.

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CPFF59. MTL explained to CMA: “This container has been rolled due to allegedly missed documentation, which both the shipping instructions and validated titles have been submitted before due time. Please also see attached correspondence with your team proving the same. Kindly remove all of the roll over and demurrage charges.” (*Id.* at p. 9).

The referenced email, being a written document, is the best evidence of its contents. To the extent the description in this PFF differs from the document itself, the PFF is denied. CMA denies that the mere existence of the email is evidence of the truth of its content.

Booking #NAM5194626 (Allegations 37-40)

CPFF60. CMA mistakenly rolled this container and tried to collect demurrage. MTL requested CMA to look into this and provided all proof in April of 2022. (Ex. 52). It was not until approximately 10 months later, on January 18, 2023, that CMA responded: [REDACTED]

[REDACTED]

(Ex_52, and the subject invoice and Ex_54).

CMA denies that it tried to collect demurrage. CMA admits that this invoice was cancelled and that MTL made no payments to CMA for this invoice. RPFF87.

DATED: June 12, 2024

Respectfully submitted,



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CERTIFICATE OF SERVICE

I certify that on the 12th day of June 2024, a true and correct copies of **Respondent's Replies to Complainant's Proposed Findings of Fact** was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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